DRAFT UNEXECUTED DEED (2023-06-01) - Application 23/09999/FUL, Hillsborough Yard

Schedule 1, Paragraph 3.1 [TRACKED CHANGES CONFLICT]:

The Owner shall pay the Open Space Sum of [GBP 250,000 OR GBP 140,000 - TBC BY VIABILITY ASSESSOR] indexed by [RPI / CPI - DELETE AS APPLICABLE] prior to Occupation of either the [30th OR 90th] Dwelling, whereas Sub-Clause 3.1(b) states no Open Space Sum is payable if Phase 1 is occupied first.